

MINUTES

Council Chamber, Civic Center
Huntington Beach, California
Monday, December 16, 1974

Mayor Coen called the adjourned regular meeting of the City Council of the City of Huntington Beach to order at 5:30 P.M.

ROLL CALL

Present: Shipley, Bartlett, Gibbs, Duke, Coen
Matney -(arrived 5:40 P.M.) Wieder -(arrived 5:40 P.M.)

CERTIFICATE OF COMMENDATION - MAYOR JERRY PATTERSON OF SANTA ANA

The Council approved the presentation of a Certificate of Commendation to Mayor Jerry Patterson, Santa Ana, commending him for his service to his community and its citizens which included service on the City Council, U. S. Conference of Mayors, National League of Cities and City Attorney for the City of Placentia, and for his election to the United States Congress where his district's constituents should gain much from his efforts at that level of government.

APPOINTMENT TO OIL COMMITTEE - COUNCILMAN BARTLETT - APPROVED

Mayor Coen, with the concurrence of Council, appointed Councilman Bartlett to serve as the Council representative on the City Oil Committee.

APPOINTMENT - HUNTINGTON BEACH INFORMATION NETWORK - LINDA STRAUSS - APPROVED

The City Council directed that Miss Linda Strauss be appointed to serve as the alternate representative to City Librarian Walter Johnson, on the Huntington Beach Information Network.

Councilwoman Wieder and Councilman Matney arrived at the Council meeting at 5:40 P.M.

BICENTENNIAL COMMISSION REPORT - APPOINTMENT - CHARLES PALMER - H B ELEM SCHOOL DIST

Councilwoman Wieder referred to the communication written by Mr. David Garofalo, Huntington Beach Bicentennial Commission member, regarding the presentation of the City's proposal for statewide endorsement of the July 4, 1976 Parade which Mr. Garofalo, Assemblyman Burke and she had made in Sacramento to the American Revolution Bicentennial Commission.

Discussion was held by Council regarding the matter.

Councilman Matney recommended the appointment of Mr. Chuck Palmer, Huntington Beach Elementary School District, to the Huntington Beach Bicentennial Commission. Councilman Matney stated that he would remain as Council liaison to the Commission and attend as many meetings as possible.

Mayor Coen, with the concurrence of Council, appointed Mr. Chuck Palmer, Associate Superintendent of the Huntington Beach Elementary School District, to serve on the Huntington Beach Bicentennial Commission.

REVIEW OF OLD CITY HALL DEMOLITION PROGRAM

The City Administrator informed Council that they had been provided with copies of the report prepared by the Director of Public Works and the Director of Building and Community Development relative to the proposed demolition of the old city hall and police facilities.

Discussion was held between the Council and staff regarding aspects of the demolition project.

COUNTY BOARD OF SUPERVISORS MEETING

The City Administrator reported that the Meadowlark Golf Course Acquisition Agreement and the transfer to the County of the harbor responsibility were scheduled to be considered by the Orange County Board of Supervisors at their December 17, 1974 meeting. He stated that Councilman Shipley and he would attend and requested that any Council member wishing to attend contact his office.

REAL ESTATE TRANSFER TAX ELECTION - DISCUSSION WITH ECONOMIC ADVISORY COMMISSION SCHEDULED

Mayor Coen stated that discussion on the real estate transfer tax election would be deferred until a meeting is held with the Huntington Beach Economic Advisory Commission to review the ballot proposition.

FINANCIAL REPORT - NOVEMBER, 1974

Councilwoman Wieder commented on aspects of the Financial Report prepared by the Finance Director relative to the City's revenue and expenditure/encumbrance for the period July 1, 1974 through November 30, 1974.

The Director of Finance reported on the matter and discussion was held by Council.

COMMUNITY DEVELOPMENT SEMINAR

The City Administrator informed Council of a Community Development Seminar sponsored by the League of California Cities and requested that those wishing to attend contact his office.

OIL LANDSCAPING ORDINANCE

The Director of Building and Community Development addressed Council regarding the provisions of the ordinance code relative to oil well landscaping which will become effective December 1, 1975. Discussion was held between Council, the Director of Building and Community Development and the Planning Director regarding the matter. Councilman Duke spoke regarding the need for review of the matter by the Planning Commission, and Councilman Matney stated that he would like to see a report from the Planning Director and the Director of Building and Community Development on the subject.

PERSONNEL STEP RANGE INCREASES - PERSONNEL BOARD TO REPORT

Discussion was held between the Council and staff regarding the matter of continuing merit step increases in view of the City's critical financial situation. Discussion was held and the City Attorney reported on the legal aspects of changing the annual merit provisions and the right to negotiation by the City employee organizations.

Following discussion, on motion by Duke, Council directed that the provision for merit step range increases remain in effect until a meeting is held with the Personnel Board and the Economic Advisory Commission and that the Personnel Board report on the number and individuals scheduled for said increases through June 30, 1975. The motion was passed by the following roll call vote:

AYES: Shipley, Bartlett, Gibbs, Matney, Wieder, Duke, Coen
NOES: None
ABSENT: None

ADJOURNMENT

On motion by Bartlett, the adjourned regular meeting of the City Council of the City of Huntington Beach adjourned. The motion was passed by the following roll call vote:

AYES: Shipley, Bartlett, Gibbs, Matney, Wieder, Duke, Coen
NOES: None
ABSENT: None

Alicia M. Wentworth

City Clerk and ex-officio Clerk
of the City Council of the City
of Huntington Beach, California

ATTEST:

By *Connie Brothman*
Deputy City Clerk

Alicia M. Wentworth
Alicia M. Wentworth
City Clerk

By *Connie Brothman*
Deputy City Clerk

Alvin M. Coen
Alvin M. Coen
Mayor

MINUTES

Council Chamber, Civic Center
Huntington Beach, California
Monday, December 16, 1974

Mayor Coen called the regular meeting of the City Council of the City of Huntington Beach to order at 7:00 P.M.

The Pledge of Allegiance was given by all present in the Council Chamber.

The Invocation was given by Reverend Bob Heath - Central Baptist Church.

ROLL CALL

Present: Shipley, Bartlett, Gibbs, Matney, Wieder, Duke, Coen
Absent: None

PRESENTATION OF RESOLUTION FROM H B UNION HIGH SCHOOL DISTRICT

Dr. John Hunt, Assistant Superintendent of the Huntington Beach Union High School District, presented a resolution to the Council extending their appreciation for their endorsement and support of Proposition X on the November 5, 1974 ballot for the purpose of building a new 3,000 student high school at the school site on Goldenwest Street and Warner Avenue.

COMMENDATION - HUNTINGTON BEACH PARAMEDICS

Mayor Coen presented commendations to Huntington Beach Paramedics, Mike Cooley, Robert Filipek, Mils Haskins, Gary Hendricks, Larry Marshburn, Del Mudie, Chuck Reynolds, and coordinator Bob Baker for their achievements in the field of emergency rescue. The Mayor read the commendation which cited the efforts of the Paramedics for their prompt response and emergency first aid afforded to citizens in emergency situations. Acting Captain Mitch Burr, Engineman Paul Blackman and Fireman Dale Fike of Engine Company 8208 were also presented commendations for their assistance to the Paramedics Team. Mayor Coen introduced Mr. and Mrs. Westenburger and their daughter Tracy who was a potential drowning victim and who had been revived by the Paramedics and the Engine Company directed by Captain Ken Van Doren.

COMMENDATIONS - HUNTINGTON BEACH 7TH & 8TH GRADE FLAG FOOTBALL ALL-STAR TEAM

Mayor Coen presented Commendations to the following members of the 1974 Huntington Beach 7th and 8th grade Flag Football All-Star Team in recognition of their outstanding record in winning the Orange County Championship: Coach, Ted Szweb, Assistant Coaches, Mike Pittenger and Daryl Smith. Team Members: Jerry Murphy, Ricky Glenn, Mike Szweb, Jamie Schubert, Glen Bergeron, Steve Vandenbusch, Craig Woods, Jackie Burkett, Rick Hayden, Shane Shives, Greg Wooton, Dennis Smartt, Quique Molina, Paul Schaffer, Kevin White and Mike Turner.

PRESENTATION - LETTER OF APPRECIATION TO HUNTINGTON BEACH COMPANY

Mayor Coen introduced Mr. William E. Foster, Vice-President and General Manager of the Huntington Beach Company and presented a Letter of Appreciation to the Huntington Beach Company for their donation of \$45,000 to the City for the purchase of the Civic Center Sculpture to be installed in the Civic Center plaza within a year.

PRESENTATIONS - TEN YEAR SERVICE PIN AWARDS TO CITY EMPLOYEES

The Mayor and respective Department Heads presented Ten Year Service Pin Awards to the following city employees:

DEPARTMENT OF BUILDING & COMMUNITY DEVELOPMENT

Vicki Laney
Leonard Logsdon
Warren Schulz
Wilbur Wrather

LIBRARY

Marilyn Patsel

RECREATION & PARKS DEPT

Duane Jenkins

FINANCE DEPARTMENT

Maxine Allen
Mona Terrill

FIRE DEPARTMENT

Frank Kelly
Kenneth Van Dorn
Edward Vasile
Don Shusta
Gary Holder

POLICE DEPARTMENT

Gilbert Veine
Monty Mc Kennon
Fred Loya
DeWayne Brown
Robert Fickle
Charles Gregory
Michael Burkenfield

DEPARTMENT OF PUBLIC WORKS

Lyman McCray
Alvin Adams
Paul Focht
George Krumsick
Richard Sillett
Shigeru Yamada

CONSENT CALENDAR - (ITEMS APPROVED)

At the request of Councilwoman Wieder, the Consent Calendar item pertaining to the agreement between the City and the Orange County Harbors, Beaches and Parks District was removed from the Consent Calendar for separate discussion.

On motion by Duke, the following items were approved as recommended, by the following roll call vote:

AYES: Shipley, Bartlett, Gibbs, Matney, Weider, Duke, Coen
NOES: None
ABSENT: None

CLAIM NO 74-136 - SOUTHERN CALIFORNIA GAS CO - DENIED - Denied Claim No. 74-136 filed by Southern California Gas Company for alleged damage to facilities on or about October 2, 1974 in the vicinity of 401 20th Street, City.

CLAIM NO 74-143 - GLENN KALKO - DENIED - Denied Claim No. 74-143 filed by Glenn Kalko for reimbursement of automobile impound costs incurred on or about October 14, 1974 in the vicinity of Goldenwest Street and Ellis Avenue.

CLAIM NO 74-144 - RONALD HALE MC ELROY - DENIED - Denied Claim No. 74-144, Ronald Hale McElroy, a minor, by William McElroy, father, filed by David B. Kerr, Attorney at Law, for alleged personal injuries from purported false arrest incurred on or about September 6, 1974 in the vicinity of the intersection of England Street and Yorktown Avenue.

CLAIM NO 74-147 - TERRY WALTON - DENIED - Denied Claim No. 74-147 filed by Carl F. Agren, Attorney at Law, on behalf of Terry Walton for alleged personal injuries incurred on or about September 11, 1974, in the vicinity of the intersection of Beach Boulevard and Slater Avenue.

SEWER LIFT STATION - SEWER MAINS - CC-311 - Adopted Exemption Declaration No. 74-163, approved plans and specifications for the construction of a sewer lift station, wet well, force main and appurtenances in Talbert Avenue and sanitary sewer mains in Talbert and Slater Avenues, and authorized the City Clerk to advertise for bids.

DEDICATED IMPROVEMENTS - TRACT NO 8224 - MANSION-HALL CO - Accepted improvements dedicated for public use in Tract No. 8224, located west of 17th Street, north of Palm Avenue, authorized the release of the faithful performance portion of the Improvement Bond only, the Monument Bond and termination of the Subdivision Agreement for Tract No. 8224 and directed the City Clerk to notify the developer and the Treasurer to notify the bonding company.

NOTICE OF COMPLETION - EDISON COMMUNITY PARK - CC-235 - Accepted work on the construction of the Edison Community Park, CC-235, completed by Valley Crest Landscape, for a final contract amount of \$789,451.61, and directed the City Clerk to file the Maintenance Bond and to file a Notice of Completion with the Orange County Recorder.

FLOOD DAMAGE CLAIMS - DENIED - Denied the following flood damage claims as recommended by the City Attorney:

<u>CLAIM NOS.</u>	74-126	-	James E. Sorrell	-	8252 Michael Drive
	74-127	-	Jean Paul Berube	-	8321 Newman Avenue
	74-128	-	Michael G. Patterson	-	8222 Michael Drive
	74-129	-	Leon J. Howenstein	-	8212 Michael Drive
	74-130	-	Edward A. Stanley	-	8301 Michael Drive
	74-131	-	Bryan S. Thompson	-	8221 Michael Drive
	74-132	-	Amador Vega	-	8251 Michael Drive
	74-133	-	Ruben Trujillo	-	8241 Michael Drive
	74-134	-	Kathleen Mary O'Hearn	-	8232 Michael Drive
	74-135	-	Angela C. Ruiz	-	8262 Michael Drive
	74-137	-	Barbara Libonati	-	401 13th Street
	74-138	-	Jill A. Black	-	401-B 13th Street
	74-139	-	G. Alford & T. Meyers	-	401-A 13th Street
	74-140	-	Flora H. Wadhams	-	8192 Michael Drive
	74-141	-	Irene M. Ganzer	-	8242 Michael Drive
	74-142	-	Harold P. Miller, by E. L. Anderson	-	317 Adams Avenue
	74-145	-	Ruth Thompson Whitman	-	424 14th Street
	74-146	-	James C. Nye	-	8281 Michael Drive
	74-148	-	Donald R. McNiven	-	6132 Christy Drive
	74-149	-	William R. Casey	-	6142 Christy Drive
	74-150	-	Alphonsus G. Bentley	-	326 Apts 1-6, 13th St.
	74-151	-	Scott W. Perry	-	Orange Avenue & 13th St.
	74-152	-	Charles S. Mashburn	-	503 13th Street
	74-153	-	Stephen Lee Johnson	-	8311 Newman Avenue
	74-154	-	R. H. Hazard	-	8291 Newman Avenue

TRACT NO 8688X - KAISER AETNA - BONDS APPROVED - Accepted Traffic Signal Bond No. MNR906610, Monument Bond No. MNR 906609, Faithful Performance Bond No. MNR906608, Labor and Material Bond No. MNR906608 - (Insurance Company of North America) for Tract No. 8688X located northwest of Graham Street and McFadden Avenue, and directed the City Clerk to file same with the City Treasurer.

AGREEMENT - O C HARBORS, BEACHES & PARKS DISTRICT - HARBOR PATROL - APPROVED

The Clerk presented an agreement between the City and the Orange County Harbors, Beaches and Parks District providing for County responsibility for the administration, operation and maintenance of Huntington Harbour.

Councilwoman Wieder reported that members of the Huntington Harbour Property Owners Association, Yacht Club, and Angler Club had met with representatives of the County Harbors, Beaches and Parks District regarding the transition of harbor patrol services. Councilwoman Wieder reported that a meeting had been held between representatives of the Huntington Harbour Property Owners Association, the Angler Club and Yacht Club and the Orange County Harbors, Beaches and Parks District and that meetings would be held between the parties periodically.

A motion was made by Councilwoman Wieder that Council approve the agreement between the City and the Orange County Harbors, Beaches, and Parks District for County responsibility for the administration, operation and maintenance of Huntington Harbour and authorized the Mayor and City Clerk to execute same on behalf of the City.

The motion was passed by the following vote:

AYES: Shipley, Bartlett, Gibbs, Matney, Wieder, Duke, Coen
NOES: None
ABSENT: None

BID AWARD - MASTER PLAN STORM DRAIN - NEWLAND STREET - CC-325 - CANADAS & COULSON

The Clerk read a communication from the Public Works Department stating that bids for Project CC-325 - Construction of the Master Plan Storm Drain in Newland Street from Modale Drive to Ellis Avenue had been received and opened at 10:00 A.M., on Monday, December 9, 1974, in the Council Chamber by the City Clerk and the Director of Public Works, and that Canadas & Coulson, Santa Ana, California, was the low bidder with a bid in the amount of \$81,687. The Director of Public Works recommended that Council award the bid to Canadas & Coulson, Santa Ana, California. The bids submitted were as follows:

Canadas & Coulson	-	Santa Ana	-	\$ 81,687.00
M. L. Garten	-	Anaheim	-	\$ 92,445.61
A & A Construction	-	Torrance	-	\$ 99,264.30
Savala Construction	-	Costa Mesa	-	\$100,159.00
Kordick & Son, Inc.	-	Huntington Beach	-	\$102,083.00
McGuire Const. Inc.	-	Placentia	-	\$103,037.20
Globe Construction	-	Los Angeles	-	\$105,805.00
Stevenson & Forster	-	Cerritos	-	\$109,935.00

A motion was made by Councilwoman Gibbs to award the contract for Project CC-325 to Canadas & Coulson, Santa Ana, California, the lowest responsible bidder for the bid amount of \$81,687; hold all other bids until Canadas & Coulson has executed the contract for said work and filed necessary bonds and insurance, and directed the City Clerk to notify the unsuccessful bidders of the action and return their bid bonds forthwith. The motion was passed by the following vote:

AYES: Shipley, Bartlett, Gibbs, Matney, Wieder, Duke, Coen
NOES: None
ABSENT: None

BID AWARD - DEMOLITION OF OLD CITY HALL & POLICE FACILITY - CC-327 - SAMPSON CONTRACTING

The City Clerk read a communication from the Public Works Department stating that bids for Project CC-327 - Demolition of the old City Hall and Police Facility, were received and opened at 10:00 A.M. on Thursday, December 12, 1974, in the Council Chamber by the City Clerk and the Director of Public Works, and that Sampson Contracting, Inc., Los Angeles, was the low bidder with a bid in the amount of \$4,780. The Director of Public Works recommended that Council accept Exemption Declaration No. 74-167 without the Environmental Review Board's recommendation and request for additional information and award the bid to Sampson Contracting, Inc., Los Angeles, California, upon receipt of permit from the South Coast Regional Commission. The bids submitted were as follows:

Sampson Contracting, Inc.	-	Los Angeles	-	\$ 4,780
Roger Roy Gen. Eng. Cont.	-	Chatsworth	-	\$ 6,200
National Land Clearing & Rental Corp	-	Gardena	-	\$ 6,870
Mead Wrecking Company	-	Pasadena	-	\$ 7,291
Three D Service Company	-	El Monte	-	\$ 8,330
Harold E. Simpson Co.	-	Irwindale	-	\$ 9,806
Hintz Wrecking Co., Inc.	-	Burbank	-	\$11,150
OCC Land Clearing & Rental Corporation	-	Los Angeles	-	\$13,100
Slaybaugh Demolition	-	Santa Ana	-	\$19,000

A motion was made by Councilman Bartlett to adopt ED #74-167, without the Environmental Review Board's recommendation and request for additional information; award the contract for Project CC-327 to Sampson Contracting, Inc., Los Angeles, the lowest responsible bidder for the bid amount of \$4,780, subject to the City receiving a permit from the South Coast Regional Commission, and hold all other bids until Sampson Contracting, Inc., has executed the contract for said work and filed necessary bonds and insurance, and direct the City Clerk to notify the unsuccessful bidders of the action and return their bid bonds forthwith.

Councilman Duke stated that he would vote against said motion due to the lack of a Financial Impact Report and because he believed a determination should be made of the building's historic importance.

Following discussion, the motion was passed by the following vote:

AYES: Shipley, Bartlett, Gibbs, Matney, Wieder, Coen
NOES: Duke
ABSENT: None

PUBLIC HEARING - APPEAL TO DENIAL - CONDITIONAL EXCEPTION 74-51 - APPEAL DENIED

Mayor Coen announced that this was the day and hour set for the continuance of a public hearing from the adjourned regular meeting of December 9, 1974, on an appeal filed by Paul C. Hegness, Attorney at Law, on behalf of Andrus Development Corporation, City, to the Planning Commission denial of Conditional Exception No. 74-51 to permit a (5) five foot encroachment in the ten (10) foot minimum rear yard setback in lieu of Section 9163.3 of the Huntington Beach Ordinance Code, on property located on the north side of Pearce Street, approximately 103 feet west of Green Street in an R2 Medium Density Residential District.

The Planning Director presented a resume' of the Planning Commission reasons for recommending denial of Conditional Exception No. 74-51. He stated that a photograph of the structure had been provided for the information of Council.

Mr. Paul Schuman, Secretary/Treasurer of Andrus Development Corporation, addressed Council regarding the reasons for their request for a conditional exception and referred to a drawing of the project.

Mr. Sterling Buck, General Contractor of the development, addressed Council regarding the manner in which the plans were developed and the reasons why he believed a conditional exception should be granted.

Mr. Schumann again addressed Council regarding their request and discussion was held between the Council, Planning Director and Mr. Schumann.

Mr. Clayton Souders, property owner in the area, addressed Council in opposition to the granting of a conditional exception stating that the encroachment restricted access to his property.

Mr. Andrew Acosta, 4832 Sandy Lane, City, addressed Council in opposition to the conditional exception stating that it would restrict the use of his property.

Mr. Souders, again addressed Council and gave reasons why he opposed said conditional exception.

There being no one further present to speak on the matter, and there being no further protests filed, either oral or written, the hearing was closed by the Mayor.

The City Attorney addresssed Council regarding the legal ramifications of the matter.

A motion was made by Councilman Matney to sustain the decision of the Planning Commission and deny Conditional Exception No. 74-51.

Discussion was held between the Council, staff, and Director of Building, Safety and Community Development regarding the matter.

The motion made by Councilman Matney was passed by the following vote:

AYES: Shipley, Gibbs, Matney, Wieder, Duke, Coen

NOES: Bartlett

ABSENT: None

BOY SCOUT TROOP #553 INTRODUCED

Councilman Bartlett introduced the Scoutmaster and Scouts of Troop #553 who were visiting the City Council meeting.

PUBLIC HEARING - CODE AMENDMENT NO 74-9 - APPROVED - ORD NO 1952 - FIRST READING

Mayor Coen announced that this was the day and hour set for a public hearing on Code Amendment No. 74-9, initiated by the Planning Commission, and referred to as "Building Height Designation Revisions." The intent of the code amendment is to equate building heights and height designations in terms of feet rather than a permitted number of stories.

The Clerk informed Council that all legal requirements for publication and posting had been met and that she had received no communications or written protests to Code Amendment No. 74-9 or to the recommendation of approval by the Planning Commission.

The Planning Director presented a resume' of the Planning Commission's reasons for recommending approval of Code Amendment No. 74-9.

Mayor Coen declared the hearing open.

There being no one present to speak on the matter and there being no protests filed, either oral or written, the hearing was closed by the Mayor.

On motion by Bartlett, Council sustained the decision of the Planning Commission and approved Code Amendment No. 74-9 by the following vote:

AYES: Shipley, Bartlett, Gibbs, Matney, Wieder, Duke, Coen
NOES: None
ABSENT: None

The Clerk was directed to give Ordinance No. 1952 a first reading by title - "AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF HUNTINGTON BEACH AMENDING THE HUNTINGTON BEACH ORDINANCE CODE BY AMENDING CERTAIN SECTIONS AND ADDING SECTION 9232.6.2 ALL PERTAINING TO BUILDING HEIGHT LIMITS."

On motion by Bartlett, Council waived further reading of Ordinance No. 1952 by the following vote:

AYES: Shipley, Bartlett, Gibbs, Matney, Wieder, Duke, Coen
NOES: None
ABSENT: None

PUBLIC HEARING - CODE AMENDMENT NO 74-12 - APPROVED - ORD NO 1953 - FIRST READING

Mayor Coen announced that this was the day and hour set for a public hearing on Code Amendment No. 74-12 initiated by the Planning Commission, and referred to as "R1 Rear Yard Setback Classification." The intent of the code amendment is to clarify the term open space as it relates to rear yard setbacks and structures within the rear yard in the R1 (low density residential district).

The Clerk informed Council that all legal requirements for publication and posting had been met and that she had received no communications or written protests to Code Amendment No. 74-12 or to the recommendation of approval by the Planning Commission.

The Planning Director presented a resume' of the Planning Commission's reasons for recommending approval of Code Amendment No. 74-12.

Mayor Coen declared the hearing open.

There being no one present to speak on the matter and there being no protests filed, either oral or written, the hearing was closed by the Mayor.

On motion by Gibbs, Council sustained the decision of the Planning Commission and approved Code Amendment No. 74-12 by the following vote:

AYES: Shipley, Bartlett, Gibbs, Matney, Wieder, Duke, Coen
NOES: None
ABSENT: None

The Clerk was directed to give Ordinance No. 1953 a reading by title - "AN ORDINANCE OF THE CITY OF HUNTINGTON BEACH AMENDING THE HUNTINGTON BEACH ORDINANCE CODE BY AMENDING CERTAIN SECTIONS PERTAINING TO REAR YARD SETBACKS IN THE R1 DISTRICT."

On motion by Gibbs, Council waived further reading of Ordinance No. 1953 by the following vote:

AYES: Shipley, Bartlett, Gibbs, Matney, Wieder, Duke, Coen
NOES: None
ABSENT: None

PUBLIC HEARING - CODE AMENDMENT NO 74-13 - APPROVED - ORD NO 1954 - FIRST READING

Mayor Coen announced that this was the day and hour set for a public hearing on Code Amendment No. 74-13, initiated by the Planning Commission, and referred to as "Elimination of 7½ Foot Variation in Garage Setbacks." The intent of the code amendment is to repeal the 7½ foot variation in garage setbacks.

The Clerk informed Council that all legal requirements for publication and posting had been met and that she had received no communications or written protests to Code Amendment No. 74-13 or to the recommendation of approval by the Planning Commission.

The Planning Director presented a resume' of the Planning Commission's reasons for recommendation approval of Code Amendment No. 74-13.

Mayor Coen declared the hearing open.

There being no one present to speak on the matter and there being no protests filed, either oral or written, the hearing was closed by the Mayor.

On motion by Bartlett, Council sustained the decision of the Planning Commission and approved Code Amendment No. 74-13 by the following vote:

AYES: Shipley, Bartlett, Gibbs, Matney, Wieder, Duke, Coen
NOES: None
ABSENT: None

The Clerk was directed to give Ordinance No. 1954 a reading by title - "AN ORDINANCE OF THE CITY OF HUNTINGTON BEACH AMENDING THE HUNTINGTON BEACH ORDINANCE CODE BY REPEALING SECTIONS 9106.2.1, 9106.2.1.1, 9166.5.1, 9206.5.1 AND 9236.5.1 ALL PERTAINING TO VARIATION OF GARAGE SETBACKS."

On motion by Bartlett, Council waived further reading of Ordinance No. 1954 by the following vote:

AYES: Shipley, Bartlett, Gibbs, Matney, Wieder, Duke, Coen
NOES: None
ABSENT: None

PUBLIC HEARING - ZONE CASE NO 74-19 - APPROVED - ORD NO 1955 - FIRST READING

Mayor Coen announced that this was the day and hour set for a public hearing on Zone Case No. 74-19 to consider a petition for a change of zone on approximately 40.4 acres of land from M1-A Restricted Manufacturing District to 100 M1-A-20,000 (100 feet of frontage Restricted Manufacturing District - 20,000 square feet minimum per lot). The subject property is located on the south side of McFadden Avenue, approximately 1324 feet east of Bolsa Chica Street.

The Clerk informed Council that all legal requirements for notification, publication and posting had been met and that she had received no communications or written protests to Zone Case No. 74-19, or to the recommendation for approval by the Planning Commission.

The Planning Director presented a resume' of the Planning Commission's reasons for recommending approval of Zone Case No. 74-19.

Mayor Coen declared the hearing open.

Mr. Don Stevens, representing Huntington Beach Industrial Park, addressed Council and stated that he would answer any questions they may have relative to the proposed zone change.

There being no one further present to speak on the matter and there being no protests filed, either oral or written, the hearing was closed by the Mayor.

On motion by Gibbs, Council sustained the decision of the Planning Commission and approved Zone Case No. 74-19, by the following vote:

AYES: Shipley, Bartlett, Gibbs, Matney, Wieder, Duke, Coen
NOES: None
ABSENT: None

The Clerk was directed to give Ordinance No. 1955 a reading by title - "AN ORDINANCE OF THE CITY OF HUNTINGTON BEACH AMENDING THE HUNTINGTON BEACH ORDINANCE CODE BY AMENDING SECTION 9061 THEREOF TO PROVIDE FOR CHANGE OF ZONING ON REAL PROPERTY LOCATED ON THE SOUTH SIDE OF MCFADDEN AVENUE, APPROXIMATELY 1324 FEET EAST OF BOLSA CHICA STREET (ZONE CASE NO. 74-19).

On motion by Gibbs, Council waived further reading of Ordinance No. 1955 by the following vote:

AYES: Shipley, Bartlett, Gibbs, Matney, Wieder, Duke, Coen
NOES: None
ABSENT: None

RESOLUTIONS ADOPTED

At the request of Mayor Coen, Resolution No. 4001 pertaining to the South Coast Regional Coastal Commission was withheld from the consent calendar for separate discussion.

On motion by Gibbs, Council directed the Clerk to read Resolution Nos. 3999, 4002, 4003, 4004, 4005, 4006 and 4007 by title; waived further reading and adopted same by the following roll call vote:

AYES: Shipley, Bartlett, Gibbs, Matney, Wieder, Duke, Coen
NOES: None
ABSENT: None

RES NO 3999 - ADOPTED - SEWER REIMB - KAUFMAN & BROAD - TRACT NO 7627

"A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF HUNTINGTON BEACH AUTHORIZING REIMBURSEMENT FROM SEWER FUND TO KAUFMAN AND BROAD FOR A SEWER LINE BUILT IN CONJUNCTION WITH TRACT NO 7627."

RES NO 4002 - ADOPTED - SEWER REIMB - CAPISTRANO LAND CO - BALMORAL SEWER LIFT STATION

"A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF HUNTINGTON BEACH AUTHORIZING REIMBURSEMENT FROM THE SEWER FUND TO CAPISTRANO LAND COMPANY FOR THE BALMORAL SEWER LIFT STATION BUILT IN CONJUNCTION WITH TRACT NO 6277."

RES NO 4003 - ADOPTED - WATER WELL CONSTRUCTION & ABANDONMENT PERMIT

"A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF HUNTINGTON BEACH FIXING WATER WELL CONSTRUCTION AND ABANDONMENT PERMIT FEES."

RES NO 4004 - ADOPTED - SEWER & WATER REIMB - HENRY BROOKS

"A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF HUNTINGTON BEACH AUTHORIZING REIMBURSEMENT FROM SEWER FUND AND WATER FUND TO HENRY BROOKS FOR SEWER AND WATER LINES BUILT IN LYNN STREET BETWEEN WARNER AVENUE AND PEARCE STREET."

RES NO 4005 - ADOPTED - AHFP - DEVELOPMENT OF NEWLAND STREET

"A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF HUNTINGTON BEACH REQUESTING THE COUNTY OF ORANGE TO INCLUDE WITHIN THE ARTERIAL HIGHWAY FINANCING PROGRAM THE DEVELOPMENT OF NEWLAND STREET."

RES NO 4006 - ADOPTED - ESTABLISHES PARKING FEES - MUNICIPAL PARKING FACILITY

"A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF HUNTINGTON BEACH ESTABLISHING PARKING FEES IN THE MUNICIPAL PARKING FACILITY, AND REPEALING RESOLUTION NO. 3851."

RES NO 4007 - ADOPTED - SUPPORTS ORANGE COUNTY MASTER PLAN OF ARTERIAL BIKEWAYS

"A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF HUNTINGTON BEACH SUPPORTING THE ORANGE COUNTY MASTER PLAN OF ARTERIAL BIKEWAYS."

RES NO 4008 - ADOPTED - RULES & REGULATIONS - RESERVE POLICE FORCE

"A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF HUNTINGTON BEACH SETTING FORTH RULES AND REGULATIONS THAT GOVERN THE RESERVE POLICE FORCE AND REPEALING RESOLUTION NO. 3972 AND ALL OTHER RESOLUTIONS IN CONFLICT HERewith."

RES NO 4001 - ADOPTED - STATES OPPOSITION - SO COAST REGIONAL COASTAL COMMISSION

The Clerk was directed to read Resolution No. 4001 by title - "A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF HUNTINGTON BEACH OPPOSING THE ELEMENT OF POWERS, FUNDING AND GOVERNMENT OF THE SOUTH COAST REGIONAL COASTAL COMMISSION."

The Planning Director addressed Council regarding the intent of the proposed resolution and discussion was held between the Council and Planning Director.

On motion by Matney, Council waived further reading of Resolution No. 4001 by the following roll call vote:

AYES: Shipley, Bartlett, Gibbs, Matney, Wieder, Duke, Coen
NOES: None
ABSENT: None

On motion by Matney, Council adopted Resolution No. 4001 by the following roll call vote:

AYES: Shipley, Bartlett, Matney, Wieder, Coen
NOES: Duke
ABSTAIN: Gibbs
ABSENT: None

Mayor Coen appointed Councilwoman Gibbs and Councilman Duke as a Council Committee, with the Planning Director or a member of his staff, to serve as an advisory member to report back to Council on the matter and communicate with the Coastal Commission.

AGREEMENT - R M GALLOWAY & ASSOCIATES, INC - SERVICES OF WATER SUPERINTENDENT

Mayor Coen informed Council that they had been provided with copies of a proposed agreement between the City and R. M. Galloway and Associates, Inc., for the professional services of Mr. John K. Mandrell to act in the capacity of Water Superintendent for the City for a temporary period of approximately two months.

On motion by Matney, Council approved an agreement between the City and R. M. Galloway & Associates, Inc., for the professional services of Mr. John K. Mandrell to act in the capacity of Water Superintendent for the City of Huntington Beach for a temporary period of two months with review at that time, and authorized the Mayor and City Clerk to execute same on behalf of the City. The motion was passed by the following vote:

AYES: Shipley, Bartlett, Gibbs, Matney, Wieder, Duke, Coen
NOES: None
ABSENT: None

ORDINANCES ADOPTED

On motion by Matney, Council directed the Clerk to read Ordinance No. 1950 and 1951 by title; waived further reading and adopted same by the following roll call vote:

AYES: Shipley, Bartlett, Gibbs, Matney, Wieder, Duke, Coen
NOES: None
ABSENT: None

ORD NO 1950 - ADOPTED - ADMINISTRATIVE REVIEW - (CODE AMENDMENT NO 74-18)

"AN ORDINANCE OF THE CITY OF HUNTINGTON BEACH AMENDING THE HUNTINGTON BEACH ORDINANCE CODE BY ADDING THERETO SECTIONS 9811.6.1, 9811.6.2 AND 9811.6.3 PERTAINING TO ADMINISTRATIVE REVIEW. (CODE AMENDMENT NO. 74-18)."

ORD NO 1951 - ADOPTED - PRECISE PLAN NO 74-3

"AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF HUNTINGTON BEACH AMENDING THE HUNTINGTON BEACH ORDINANCE CODE BY AMENDING DISTRICT MAP 39 TO INCLUDE PRECISE PLAN NO. 74-3 WHICH REALIGNS AN UNNAMED STREET LOCATED PARALLEL TO AND EAST OF THE SOUTHERN PACIFIC RAILROAD RIGHT-OF-WAY FROM TALBERT AVENUE."

AMENDMENT TO CONTRACT - ORANGE COUNTY ALCOHOL & TRAFFIC SAFETY PROJECT - APPROVED

The Clerk presented an Amendment to the Alcohol and Traffic Safety Project Agreement dated December 9, 1974, between the County of Orange and the City to allow for additional man-hours during the month of December, 1974.

On motion by Gibbs, Council approved the amendment to the Orange County Alcohol and Traffic Safety Project Agreement dated December 9, 1974, between the County of Orange and the City to allow for additional manhours during the month of December, 1974, and authorized the Mayor and City Clerk to execute same on behalf of the City. The motion was passed by the following vote:

AYES: Shipley, Bartlett, Gibbs, Matney, Wieder, Duke, Coen
NOES: None
ABSENT: None

ENVIRONMENTAL IMPACT REPORT - OFFSHORE OIL DRILLING

Councilwoman Wieder reported that she would be representing the City during the meeting of Mayor Bradley's Task Force on Offshore Oil Drilling in Los Angeles. She stated that money was being raised to fund the preparation of an Environmental Impact Report by the National Academy of Scientists and inquired if there was money available to allow the City to participate with other cities in this regard.

Following discussion, a motion was made by Councilwoman Wieder that the City of Huntington Beach appropriate the sum of \$500 toward expenses to provide the environmental impact report in order to have substantial evidence and material to fight the Department of Interior's offshore oil drilling off the City's nine miles of beaches. The motion failed to pass by the following vote:

AYES: Shipley, Wieder,
NOES: Bartlett, Gibbs, Matney, Duke, Coen
ABSENT: None

CENTRAL CITY LIBRARY CHANGES

Councilwoman Gibbs inquired as to the contract changes relative to the Central City Library. The City Administrator reported on the matter and suggested that a meeting be held regarding the matter. Councilwoman Gibbs suggested that a meeting be scheduled between the City Council, the architectural construction coordinator and the Project Coordinator on the matter.

TOWNLOT AREA

The Planning Director presented a review of the events which had transpired following the presentation on the Townlot Area which had been made by staff to the City Council and Planning Commission at the request of the South Coast Regional Commission. He stated that the outcome of the meeting was presented to the Coastal Commission to enable them to use Council's guidelines for direction in making their decision on applications. He stated that those applications which the Coastal Commission approved are being appealed by the Environmental Coalition and those which were denied are being appealed by the applicants. He stated that the issue is now pending before the State Commission. He requested Council direction as to their position in this regard and informed them of the City's progress relative to the proposed assessment district and the General Plan Amendment for the Townlot area which is to be considered by the Planning Commission, stating that a recommendation for development standards would be ready in the near future.

Considerable discussion was held between the Council and Planning Director on the matter.

ITEMS RECEIVED AND FILED BY THE CITY COUNCIL

1. Recreation and Parks Department - Monthly Report - November, 1974.
2. Notice of filing application and hearings for revised rates, charges and rate structures for intrastate voice grade private line telephone service.
3. Resolution of the City of Cypress encouraging Cypress residents to reduce their consumption of sugar.

ADJOURNMENT

On motion by Shipley, the regular meeting of the City Council of the City of Huntington Beach adjourned at 9:50 P.M., to Monday, January 6, 1975 at 5:30 P.M. in the Council Chamber. The motion was passed by the following vote:

AYES: Shipley, Bartlett, Gibbs, Matney, Wieder, Duke, Coen
NOES: None
ABSENT: None

Alicia M. Wentworth

City Clerk and ex-officio Clerk
of the City Council of the City
of Huntington Beach, California

By: Connie Brothman
Deputy City Clerk

ATTEST:

Alicia M. Wentworth

Alicia M. Wentworth
City Clerk

Alvin M. Coen
Alvin M. Coen
Mayor

By: Connie Brothman
Deputy City Clerk